



UNITED STATES PATENT AND TRADEMARK OFFICE

UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office
Address: COMMISSIONER FOR PATENTS
P.O. Box 1450
Alexandria, Virginia 22313-1450
www.uspto.gov

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
12/601,882	06/01/2010	Melpo Christofidou-Solomidou	P-9208-US	1832
49443	7590	01/06/2012		
Pearl Cohen Zedek Latzer, LLP 1500 Broadway 12th Floor New York, NY 10036			EXAMINER CLARK, AMY LYNN	
			ART UNIT 1655	PAPER NUMBER
			NOTIFICATION DATE 01/06/2012	DELIVERY MODE ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

USPTO@pczlaw.com
Arch-USPTO@pczlaw.com

Office Action Summary	Application No.	Applicant(s)	
	12/601,882	CHRISTOFIDOU-SOLOMIDOU, MELPO	
	Examiner	Art Unit	
	Amy L. Clark	1655	

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 31 October 2011.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 5) ☒ Claim(s) 1-15, 17-20, 22 and 24-26 is/are pending in the application.
- 5a) Of the above claim(s) 8-15, 17-20, 22 and 24-26 is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 1-7 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☒ The drawing(s) filed on 25 November 2009 is/are: a) ☒ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).
- 12) ☐ The oath or declaration is objected to by the Examiner. Note the attached Office Action or form PTO-152.

Priority under 35 U.S.C. § 119

- 13) ☒ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
- a) ☒ All b) ☐ Some * c) ☐ None of:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☒ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.*

Attachment(s)

- | | |
|---|--|
| 1) ☒ Notice of References Cited (PTO-892) | 4) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date. ____ |
| 2) ☐ Notice of Draftsperson's Patent Drawing Review (PTO-948) | 5) ☐ Notice of Informal Patent Application |
| 3) ☒ Information Disclosure Statement(s) (PTO/SB/08)
Paper No(s)/Mail Date <u>See Continuation Sheet</u> . | 6) ☐ Other: ____ |

Application/Continuation Number: 12/601,882

Page 2

As of 1/1/2011

DETAILED ACTION

Examiner/Assistant:

Continuation of Attachment(s) 3). Information Disclosure Statement(s) (PTO/SB/08), Paper No(s)/Mail Date :11/25/2009;12/18/2009; 10/31/2011.

Claims 1-3, 14-20, 22 and 23 are withdrawn from further consideration pursuant to 37 CFR 1.146(b) as being drawn to a previously examined invention. There being no other claims pending in this application, the application is withdrawn from further consideration pursuant to 37 CFR 1.146(b) as being drawn to a previously examined invention.

Claims 4-7 are currently being examined in the main.

Priority

Priority is acknowledged of papers submitted under 35 U.S.C. 119(e) which papers have been placed in view of this file.

Information Disclosure Statement

The information disclosure statement(s) (IDS) submitted on 11/25/2009, 12/18/2009, and 10/31/2011 are in compliance with the provisions of 37 CFR 1.97. Accordingly, the information disclosure statement is being considered by the examiner.

Any page with a 1 in the right margin has not been considered because no information was provided on the page with 1 in the margin.

Claim Rejections - 35 USC § 102

It is noted that a 1 in the right margin of the appropriate paragraphs of 35 U.S.C. 102 has been made in the language under the action made in the Office action.

A notice when the action is a patent issued.

Art Unit: 1655

DETAILED ACTION

Election/Restrictions

Applicant's election without traverse of Group I, claims 1-7 in the reply filed on 10/31/2011 is acknowledged.

Claims 8-15, 17-20, 22 and 24-26 are withdrawn from further consideration pursuant to 37 CFR 1.142(b) as being drawn to a nonelected invention, there being no allowable generic or linking claim. Election was made **without** traverse in the reply filed on 10/31/2011.

Claims 1-7 are currently being examined on the merits.

Priority

Receipt is acknowledged of papers submitted under 35 U.S.C. 119(a)-(d), which papers have been placed of record in the file.

Information Disclosure Statement

The information disclosure statement (IDS) submitted on 11/25/2009, 12/18/2009 and 10/31/2011 are in compliance with the provisions of 37 CFR 1.97. Accordingly, the information disclosure statement is being considered by the examiner.

Any page with a line through it has not been considered because no information was provided on the page and it was blank.

Claim Rejections - 35 USC § 102

The following is a quotation of the appropriate paragraphs of 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

A person shall be entitled to a patent unless —

Art Unit: 1655

(b) the invention was patented or described in a printed publication in this or a foreign country or in public use or on sale in this country, more than one year prior to the date of application for patent in the United States.

Claims 1-7 are rejected under 35 U.S.C. 102(b) as being anticipated by Laooq Katan (U).

Laooq Katan teaches a method of administering a composition for treating bronchial asthma (which reads on acute lung inflammation and acute lung injury) comprising whole seed of *Linum usitatissimum* (linseed, which is synonymous with flaxseed and reads on a whole grain flaxseed) in an amount of 480 grams that has been combined with honey and is soaked in water overnight, boiled to remove the water, the mixture is strained, adding sugar and boiling the resulting solution to provide a desired consistency to provide an oral formulation (which also reads on bioactive ingredients and would inherently contain flaxseed lignin complex and seciosalariciresinol diglucoside, since these bioactive ingredients can be extracted from flaxseed with water) and is administered in an amount of 12-24 grams (which reads on a therapeutically effective amount) with an adjuvant of water.

Although Laooq Katan does not expressly teach the mechanisms by which the flaxseed or its bioactive ingredients function, the claimed functional properties are inherent to the preparation taught by Laooq Katan because the ingredients, the amounts of the ingredients, and the route of administration for the delivery of the ingredients taught by Laooq Katan are one and the same as disclosed in the instantly claimed invention of Applicant. Thus, mechanisms by which the flaxseed or its bioactive ingredients function are inherent to the composition taught by Laooq Katan.

Therefore, the reference anticipates the instantly claimed subject matter.

Claims 1-7 are rejected under 35 U.S.C. 102(b) as being anticipated by Prasad (V).

Prasad teaches a method of administering flax lignan complex, wherein the lignan complex contains SDG, to rabbits (which reads on a subject) in an amount of 40 mg/kg body weight (which reads on a therapeutically effective amount) in addition to their regular diet. Prasad further teaches that the flax lignin complex is an effective antioxidant.

The method of using the referenced composition is not expressly taught as a method of reducing acute lung inflammation, oxidative lung tissue injury or chronic lung fibrosis. However, the instantly

Art Unit: 1655

claimed process is a one-step process of orally administering flax lignan complex to a subject. Thus, the functional effects claimed by Applicant and their mechanisms are inherent to method taught by Prasad.

Therefore, the reference anticipates the instantly claimed subject matter.

Conclusion

No claims are allowed.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Amy L. Clark whose telephone number is (571)272-1310. The examiner can normally be reached on Monday to Friday 7 am to 3:30 pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571)272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Amy L Clark/
Primary Examiner, Art Unit 1655

Notice of References Cited	Application/Control No. 12/601,882	Applicant(s)/Patent Under Reexamination CHRISTOFIDOU-SOLOMIDOU, M	
	Examiner Amy L. Clark	Art Unit 1655	Page 1 of 1

U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	Classification
	A	US-			
	B	US-			
	C	US-			
	D	US-			
	E	US-			
	F	US-			
	G	US-			
	H	US-			
	I	US-			
	J	US-			
	K	US-			
	L	US-			
	M	US-			

FOREIGN PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Country	Name	Classification
	N					
	O					
	P					
	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
	U	Mohammad Kabiruddin. "Laoq Katan" from Bayaaz-e-Kabir, Vol. II (Compiled), Daftar al-Maseeh". Karol Bagh, New Delhi, 1938 AD, p. 149.
	V	Prasad, Kailash. "Hypocholesterolemic and antiatherosclerotic effect of flax lignan complex isolated from flaxseed". Atherosclerosis 179 (2005) 269-275.
	W	
	X	

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.05(a).)
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.

Substitute for form 1449A/PTO INFORMATION DISCLOSURE STATEMENT BY APPLICANT <i>(use as many sheets as necessary)</i>		Complete if Known	
		Application Number	12/601,882
		Filing Date	June 1, 2010
		First Named Inventor	CHRISTOFIDOU-SOLOMIDOU, Melpo
		Art Unit	
Examiner Name		Attorney Docket Number	P-9208-US
Sheet	1	of	2

U.S. PATENT DOCUMENTS					
Examiner Initials*	Cite No. ¹	Document Number	Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear
		Number-Kind Code ² (if known)			
		US-			
		US-			
		US-			
		US-			
		US-			
		US-			
		US-			
		US-			
		US-			
		US-			
		US-			
		US-			
		US-			
		US-			
		US-			
		US-			

FOREIGN PATENT DOCUMENTS						
Examiner Initials*	Cite No. ¹	Foreign Patent Document	Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear	T ⁶
		Country Code ³ Number ⁴ Kind Code ⁵ (if known)				
						☐
						☐
						☐
						☐
						☐
						☐
						☐
						☐
						☐
						☐
						☐
						☐
						☐
						☐
						☐
						☐
						☐

Examiner Signature		Date Considered	
-----------------------	--	--------------------	--

*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant. ¹ Applicant's unique citation designation number (optional). ² See Kinds Codes of USPTO Patent Documents at www.uspto.gov or MPEP 901.04. ³ Enter Office that issued the document, by the two-letter code (WIPO Standard ST.3). ⁴ For Japanese patent documents, the indication of the year of the reign of the Emperor must precede the serial number of the patent document. ⁵ Kind of document by the appropriate symbols as indicated on the document under WIPO Standard ST.16 if possible. ⁶ Applicant is to place a check mark here if English language translation is attached.

The collection of information is required by 37 CFR 1.97 and 1.98. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 2 hours to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. **SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.**

If you need assistance in completing the form, call 1-800-PTO-9199 and select option 2.

ALL REFERENCES CONSIDERED EXCEPT WHERE LINED THROUGH. /A.C.

Under the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it contains a valid OMB control number.

Substitute for form 1449B/PTO				Complete if Known	
INFORMATION DISCLOSURE STATEMENT BY APPLICANT				Application Number	12/601,882
				Filing Date	June 1, 2010
				First Named Inventor	CHRISTOFIDOU-SOLOMIDOU, Melpo
				Art Unit	
(use as many sheets as necessary)				Examiner Name	
Sheet	2	of	2	Attorney Docket Number	P-9208-US

NON PATENT LITERATURE DOCUMENTS				
Examiner Initials*	Cite No. ¹	Include name of the author (in CAPITAL LETTERS), title of the article (where appropriate), title of the item (book, magazine, journal, serial, symposium, catalog, etc.), date, page(s), volume-issue number(s), publisher, city and/or country where published.	T ²	
/A.C./	1	Govt of India; Ayurvedic Formulary of India - Part H, Govt of India, Ministry of Health & Family Welfare, Dcptt. Of S.M. & H., New Delhi, Edn. 1st [This book contains back references from 1000 B.C. to 20th century] P.69, (2000).	☒	
/A.C./	2	Ziya Al- Din Abdullah Ibn Al- Baitar; AMAam'e-ii-Mufradaat-al-Advia-w ai-Aghzia, Vol. I (3th century AD), Matba Amra, Cairo, Egypt, Page 90, 1874 AD.	☒	
/A.C./	3	Mohammad Azarn Khan; Muheet-e-Azam Vol. IV (Part I) {19th century AD}, Matba Nizami, Kanpur, Page 35, 1899 AD.	☒	
/A.C./	4	Ali Ibn-e-Abbaas Majoosi; Kaamil-al-Sena'ah, Part II (10 th century AD), Central Council for Research in Unani Medicine, 61-65 Institutional Area, Janak Puri, New Delhi-58, 2005 AD, p. 54	☒	
/A.C./	5	Mohammad Akbar Arzani; Qaraabaadeen Qaadri (17 th century AD), Ahmade Publication, Delhi, 1968 AD, p. 131	☒	
/A.C./	6	Abu Bakr Mohammad.Bin Zakariyya Al-Razi; Kitaab-al-Haawi-fil-Tibb, Vol.IV (9 th century AD), Dayerah-al-Ma'aarif Usmania, Hyderabad, 1978 AD, p. 90	☒	
/A.C./	7	Abu Bakr Mohammad.Bin Zakariyya Al-Razi; Kitaab-al-Haawi-fil-Tibb, Vol.IV (9 th century AD), Dayerah-al-Ma'aarif Usmania, Hyderabad, 1978 AD, p. 198	☒	
/A.C./	8	Abu Ali Ibn-e-Sina; Al-Qaanoon-fil-Tibb, Vol. V (11 th century AD), Publication Department, Jamia Hamdard, New Delhi-62, 1996 AD, p. 199	☒	
/A.C./	9	Abu Bakr Mohammad.Bin Zakariyya Al-Razi; Kitaab-al-Haawi-fil-Tibb, Vol.IV (9 th century AD), Dayerah-al-Ma'aarif Usmania, Hyderabad, 1978 AD, p. 25-147	☒	
/A.C./	10	Abu Bakr Mohammad.Bin Zakariyya Al-Razi; Kitaab-al-Haawi-fil-Tibb, Vol.IV (9 th century AD), Dayerah-al-Ma'aarif Usmania, Hyderabad, 1978 AD, p. 25-26	☒	
			☐	

Examiner Signature	/Amy Clark/	Date Considered	12/30/2011
-----------------------	-------------	--------------------	------------

* EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

¹ Applicant's unique citation designation number (optional). ² Applicant is to place a check mark here if English language Translation is attached.

The collection of information is required by 37 CFR 1.97 and 1.98. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 2 hours to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.

ALL REFERENCES CONSIDERED EXCEPT WHERE LINED THROUGH. /A.C./